

Recusal Application

Non-Sealing, Non-Acknowledgement, and Subsequent Orders

Case references

BV20D01752 | AC-2025-LON-004293

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command

Nadia Zahmoul

Litigant in Person

16 March 2026

Veritas Numquam Perit

PART 1 — PURPOSE OF THIS ANNEX

- 1.** This annex concerns the fate of NZ's application for recusal of MacDonald J, filed on grounds of judicial bias and unlawful disability discrimination.
- 2.** The application was filed on 13 May 2025. It was not sealed. It was not acknowledged. It was not placed before a judge. MacDonald J subsequently proceeded to make an order on 8 May 2025 — in NZ's absence — which resulted in her hospitalisation. That order was made on H's unilateral bundle only.
- 3.** This annex does not ask investigating officers to determine whether the recusal grounds were correct. It draws attention to three specific matters that are relevant to the criminal referral:
 - The application was suppressed — not sealed, not acknowledged, not placed before a judge — in circumstances where it documented bias and discrimination that NZ had already raised repeatedly.
 - The judge against whom recusal was sought then made further orders in NZ's absence, including an order that NZ describes as the direct cause of her subsequent hospitalisation.
 - The pattern of non-sealing, non-acknowledgement, and continued proceeding in NZ's absence is consistent with the broader pattern of administrative suppression documented across this referral.

PART 2 — THE RECUSAL APPLICATION: WHAT IT CONTAINED

- 4.** The recusal application was filed by email on 13 May 2025, addressed simultaneously to the Lord Chancellor, the Prime Minister, the Secretary of State for Justice, the Master of the Rolls, and the court. The subject line: URGENT — APPLICATION FOR RECUSAL OF JUDGE ON GROUNDS OF JUDICIAL BIAS AND DISCRIMINATION.
- 5.** The application was supported by a witness statement dated 31 March 2025 (16 pages) and a transcript of oral evidence. It made the following documented allegations:

5.1 Paragraph 64 of the Final Judgment — the obsession finding

- 6.** The application challenged paragraph 64 of the final judgment [2024] EWFC 79, which stated:

"The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress. However, whilst I accept that the wife very firmly believes that the husband has tens of millions of pounds in assets hidden and, I am satisfied, has become obsessed with demonstrating that in the context of this litigation, I must conclude that that belief is not borne out by the evidence before the court."

7. The application set out the following analysis of that paragraph:

- The finding of 'obsession' is directly contradicted by the trial transcript. The question of 'hidden assets' was put to NZ once during cross-examination. NZ's answer was: 'Not strictly true, what is important is freedom from everything and justice.'
- By contrast, NZ's PTSD, autism, and mental health difficulties were raised 20 times during cross-examination. H himself acknowledged under oath that NZ suffered from PTSD and that the proceedings would trigger her symptoms.
- Zero mentions of NZ's disability appear in the judgment. Twenty questions about it appear in the transcript. The paragraph 64 'obsession' finding fills the space that the disability suppression created.
- The application stated: 'For this paragraph to exist, it is essential to suppress my autism and PTSD in order to make room for my alleged character flaws.'

5.2 Paragraph 9 of the Costs Judgment — disruptive behaviour finding

8. The application also challenged paragraph 9 of the costs judgment [2024] EWFC 114. That paragraph attributed additional costs to NZ on the ground that her behaviour and presentation at the final hearing were so disruptive as to justify further costs being made against her alone.

9. The application made the following documented points:

- It is unlawful to attribute legal costs to a vulnerable party as a result of conduct that is a manifestation of mental health disabilities. MacDonald J was wrong to attribute costs to 'disruptions' caused by NZ's autism and PTSD.
- The finding is directly contradicted by the trial transcript. On 21 February 2024, when Campbell KC asked a question that triggered NZ's distress, MacDonald J himself intervened and directed Campbell KC to move on.
- The disruption finding was deployed to impose £255,654.50 in costs on NZ — including as a penalty for the consequences of non-enforcement of MPS, which NZ had been requesting for 71 documented days.

5.3 Two false statements in the final order

10. The application also identified two false statements in the sealed final order of 24 May 2024:

- First false statement: 'BEFORE MR JUSTICE MACDONALD SITTING IN PRIVATE AT THE ROYAL COURTS OF JUSTICE ON 24 MAY 2024.' There was no hearing before MacDonald J on 24 May 2024.
- Second false statement: 'UPON hearing Brent Molyneux KC for the applicant and Alexis Campbell KC and Sassa-Ann Amaouche for the respondent.' NZ lost her legal representation on 7 March 2024. BMKC and his team were not representing NZ on 24 May 2024.

- 11.** NZ made repeated requests to the High Court and the Court of Appeal for an explanation of these false statements. No explanation was ever provided.

PART 3 — WHAT HAPPENED TO THE APPLICATION

DATE	EVENT	OUTCOME	SIGNIFICANCE
13 May 2025	Recusal application filed by email to Lord Chancellor, Prime Minister, Secretary of State for Justice, Master of the Rolls, and court. Subject: URGENT — APPLICATION FOR RECUSAL OF JUDGE ON GROUNDS OF JUDICIAL BIAS AND DISCRIMINATION.	Not sealed. Not acknowledged. Not placed before a judge.	The application was suppressed at the administrative level. It never reached judicial consideration. The same judge against whom recusal was sought continued to exercise jurisdiction.
8 May 2025 (note: chronologically prior to 13 May filing but post the underlying application)	MacDonald J proceeds with hearing in NZ's absence. NZ had filed an application to adjourn citing medical emergency (psychiatric crisis). MacDonald J characterised the medical application as 'deliberately obstructive'. He proceeded on H's unilateral bundle only.	Set-aside application dismissed. Contempt application dismissed (wrong ground: 'not matrimonial property'). Enforcement directed. Maintenance pending suit refused as 'totally without merit'. Indemnity costs ordered against NZ.	This order was made at a hearing NZ could not attend due to medical emergency, by a judge whose recusal NZ had sought, on H's evidence alone. NZ describes this order as the direct cause of her subsequent hospitalisation.
Post 8 May 2025	NZ hospitalised. She had already been hospitalised on 1 March 2025 with suspected poisoning — the second such episode. She was under the care of the Crisis Resolution & Home Treatment team at Chelsea and Westminster Hospital.	No response from any authority to the recusal application. No acknowledgement from the court. No safeguarding response.	The sequence — recusal application suppressed, order made in absence, hospitalisation — is documented and contemporaneous. It is not asserted in retrospect.
4 August 2025	Lady Justice King refuses CPR 52.30 application. Addresses recusal grounds as part of wider disability suppression argument. Finds MacDonald J 'not required to identify these issues explicitly in his judgment.'	Court of Appeal route closed.	Lady Justice King's order is itself an example of the same pattern: the disability ground is characterised as requiring explicit mention in the judgment, rather than as a structural mechanism operating at

			the level of process.
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PART 4 — THE PATTERN OF NON-SEALING

- 12.** The recusal application joins a documented list of applications and submissions that were filed but not sealed, not acknowledged, or not placed before a judge:

DATE	APPLICATION	FATE
7 March 2024	D11 application: Oxus perjury — false representations at trial	Not sealed. Campbell KC asked judge not to read NZ's submission. Judgment silent on Oxus.
2 May 2024	Form D50K: enforcement of Maintenance Pending Suit order	Acknowledged by HMCTS on 9 May 2024 as pending issue subject to fee payment. D50K fee confirmed paid. Application never sealed. Arrears remitted in unilateral draft order of 14 May 2024 without enforcement hearing.
8 February 2024 11 April 2024 12 May 2025	Three criminal evidence referrals submitted to HMCTS/Moj	Not logged. Not acknowledged. Not escalated. Not transmitted to law enforcement. HMCTS classified subsequent handling as a 'judicial decision' (14 November 2025) — no such decision exists.
13 May 2025	Recusal application: judicial bias and unlawful disability discrimination	Not sealed. Not acknowledged. Not placed before a judge. MacDonald J continued to exercise jurisdiction.
10 February 2025 onwards	CPR 52.30 application to Court of Appeal: reopen refusal of PTA	Filed 10 February 2025. Chased almost daily. Not sealed before 8 May 2025 hearing. MacDonald J proceeded with hearing in NZ's absence before Court of Appeal had acted.

- 13.** The pattern is consistent: each application that threatened to place evidence of misconduct before a judicial decision-maker was suppressed at the administrative level, characterised incorrectly, or simply not processed until the matter it was designed to address had been resolved by other means.
- 14.** This is not a matter of administrative delay. Delay produces late decisions. This pattern produces no decisions — or decisions that arrive after the window for their practical effect has closed.

PART 5 — RELEVANCE TO THE CRIMINAL REFERRAL

15. The recusal application is relevant to this criminal referral in three ways.

5.1 Evidence of the disability suppression mechanism

16. The recusal application — produced by NZ without legal assistance on 13 May 2025 — identifies with precision the mechanism by which the disability suppression operated. The 20/0 asymmetry (20 oral references to disability, zero in the judgment) is not a stylistic choice. It is a structural mechanism. It creates a vacancy into which the 'obsession' finding was inserted. The recusal application, written before the analysis produced in this referral bundle, demonstrates that NZ understood this mechanism independently and contemporaneously.

5.2 Evidence of the causal chain linking MacDonald J's conduct to NZ's hospitalisation

17. The sequence is documented and contemporaneous:

- Recusal application filed 13 May 2025 — not sealed, not acknowledged.
- 8 May 2025 order made in NZ's absence — medical application characterised as 'deliberately obstructive' — enforcement directed on H's evidence alone — indemnity costs.
- NZ hospitalised following the 8 May order. This was her second hospitalisation in 2025, following a first on 1 March 2025 with suspected poisoning.
- The recusal application witness statement (31 March 2025) had already documented that NZ was under the care of the Crisis Resolution & Home Treatment team at Chelsea and Westminster Hospital and attending daily outpatient appointments.

18. A judge who has been asked to recuse himself, who proceeds in the absence of the party who sought his recusal, on the unilateral bundle of the opposing party, and makes orders that result in that party's hospitalisation — this sequence falls within the conduct that the police are asked to assess against the threshold for misconduct in public office.

5.3 Evidence that the administrative suppression was not accidental

19. The recusal application was filed in May 2025, fourteen months after NZ first raised judicial bias in writing (April 2024). It was filed simultaneously to the Lord Chancellor, the Prime Minister, and the Master of the Rolls — the three highest authorities in the justice system. It was not sealed. It was not acknowledged. The judge it targeted continued to sit on NZ's case.

20. When an application for recusal addressed simultaneously to the Lord Chancellor and the Master of the Rolls is not acknowledged and the judge continues to exercise jurisdiction, the question of institutional accountability is not academic. It is the central question of this referral.

PART 6 — REQUEST TO INVESTIGATING AUTHORITIES

21. Police are asked to:

- Note the recusal application of 13 May 2025 as part of the documented pattern of administrative suppression of NZ's applications.
- Assess the sequence — recusal application suppressed; order made in absence; hospitalisation — as part of the causal chain analysis of MacDonald J's conduct against the threshold in AG's Reference (No 3 of 2003).
- Consider whether the non-sealing and non-acknowledgement of the recusal application constitutes a further administrative failure by named HMCTS officers, separate from and additional to the failures documented in the Imerman annex.
- Note that the two false statements in the final order of 24 May 2024 (no hearing on that date; NZ represented by counsel) were identified in the recusal application and have never been explained by any court or authority.

VERIFICATION

- 22.** The recusal application (N244 form and 16-page witness statement, dated 13 May 2025) is in NZ's possession and can be provided to investigating officers on request. It is also archived in the public GitHub repository maintained by NZ.
- 23.** The final judgment [2024] EWFC 79 and costs judgment [2024] EWFC 114 are published on The National Archives and are publicly accessible.
- 24.** The transcript of oral evidence referenced in the recusal application is in NZ's possession and is available to investigating officers on request.

Nadia Zahmoul

Claimant (Litigant in Person)

nadia@rosekross.com

Date: 16 March 2026

Case references: BV20D01752 | AC-2025-LON-004293 | CA-2024-001342 | BL-2024-001217